



REGULATION OF GENERATION, TRANSMISSION AND DISTRIBUTION OF ELECTRIC POWER (AMENDMENT) ACT, 2011

Last Updated: 2011-09-29

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REGULATION OF GENERATION, TRANSMISSION AND DISTRIBUTION OF ELECTRIC POWER (AMENDMENT) ACT, 2011

ACT XVIII OF 2011

An Act further to amend the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997.

Whereas it is expedient further to amend the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997), for the purposes hereinafter, appearing;

It is hereby enacted as follows:—

1. Short title and commencement.— (1) This Act may be called the Regulation of Generation, Transmission and Distribution of Electric Power (Amendment) Act, 2011.

(2) It shall come into force at once.

2. Amendment of section 2, Act XL of 1997.—In the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997), hereinafter referred to as the said Act, in section 2, in clause (xxi), after the word "undertaking" the commas and words ", authority, or body corporate set up or controlled by the Federal Government or, as the case may be, the Provincial Government" shall be added.

3. Amendment of section 3, Act XL of 1997.—In the said Act, in section 3,—

(a) for subsection (3), the following shall be substituted, namely:—

"(3) The Chairman shall be an eminent professional of known integrity and competence with at least twenty years of related experience in law, business, engineering, finance, accounting, economics, or the power industry."; and

(b) in subsection (4), for the words "electric utility" the word "power" shall be substituted.

4. Amendment of section 7, Act XL of 1997.—In the said Act, in section 7, in sub-section (2),

(a) in clause (f), the word "and" at the end, shall be omitted; and

(b) for clause (g), the following shall be substituted, namely:—

"(g) review its orders, decisions or determinations;

(h) settle disputes between the licensees;

(i) issue guidelines and standards operating procedures; and

(j) perform any other function which is incidental or consequential to any of the aforesaid functions."

5. Insertion of section 12A, Act XL of 1997.—In the said Act, after section 12, the following new section shall be inserted, namely:—

"(12A) Appeal.— Any person aggrieved by any decision or order of the Single Member of the Authority or, as the case may be, Tribunal established under section 11 may, within thirty days of the decision or order, prefer an appeal to the Authority in the prescribed manner and the Authority shall decide such appeal within sixty days."

6. Amendment of section 29, Act XL of 1997.—In the said Act, in section 29,—

(a) for the words "three hundred thousand" the words "one hundred million", shall be substituted; and

(b) for the words "a higher penalty as may be prescribed" the words "a fine which may extend to five hundred thousand rupees per day" shall be substituted.

7. Amendment of section 31, Act XL of 1997.—In the said Act, in section 31, in subsection (4), for the second proviso the following shall be substituted, namely:—

"Provided further that the Authority may, on a monthly basis and not later than a period of seven days, make adjustments in the approved tariff on account of, any variations in the fuel charges and, policy guidelines as the Federal Government may issue and, notify the tariff so adjusted in the official Gazette."

8. Amendment of section 38, Act XL of 1997.—In the, said Act, in section 38, after subsection (2), the following new subsection shall be added, namely:—

"(3) Any person aggrieved by any decision or order of the Provincial Office of Inspection may, within thirty days of the receipt of the order, prefer an appeal to the Authority in the prescribed manner and the Authority shall decide such appeal within sixty days."
